

		Any claims to the surplus funds must be filed with the court and served on the foregoing claimants at least 15 days before the foregoing hearing date. Petitioner's counsel is ordered to give notice of this ruling.
10.	<i>In re: 206-208 W. Electric Ave., La Habra, CA 90631</i> <i>2026-01574411</i>	Before the court is the continued hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 206-208 W. Electric Avenue, La Habra, California 90631 and owned by Lucy Seh, trustee of the Peter Seh Living Trust 2001 dated September 13, 2001 (Trust), and Jonathan Seh as joint tenants. As more fully set forth below, the court DECLINES to issue an order for sale at this time without prejudice to a future application that complies with all timing and other statutory requirements. The original order to show cause was entered on June 4, 2026 based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). In issuing the original order to show cause, the court found Creditors' application satisfied the statutory requirements and therefore the court entered the original order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court conducted the hearing on the original order to show cause on July 16, 2026, and continued the hearing to today's date based on various deficiencies the court found. Specifically, as set forth in its minute order, the court ruled as follows: "The tentative ruling, as modified, now becomes the order of the court as follows: "Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 206-208 W. Electric Avenue, La Habra, California 90631, and owned by judgment debtors the Peter Seh Living Trust 2001 dated September 13, 2001, and Jonathan She (collectively, Debtors). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770.

	"Any opposition shall be filed and served by 09/04/2026. Any reply shall be filed and served by 09/16/2026. "The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. "Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. "Those documents must be served on the Debtors either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. "Creditors filed proofs of service showing they effectuated substitute service on the occupants of the property by serving the application for order of sale and the order to show cause. The proofs of service, however, fail to show Creditors served the notice of the hearing in the form prescribed by the Judicial Council. "As for service on Debtors, Creditors filed a document entitled 'Proof of Service by Mailing of Order to Show Cause.' The documents attached, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service, and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which any party is served. One of the Debtors is a trust, and therefore must be served by service on the trustee in that capacity. "The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the 'Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750).' There, however, is no proof of service showing this
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	supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. "Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770." Following the July 16, 2026 hearing, Creditors submitted and the court issued a new order to show cause on July 21, 2026. (ROA 31.) Creditors now have filed new proofs of service showing compliance with statutory notice requirements. (ROA 33, 35, 37, 38, 40 41.) Although the proofs of service all list a notice of hearing on right to homestead exemption as one of the documents that was served, Creditors have not filed a copy of that document with the court and therefore the court cannot confirm what notice was actually served. In connection with the order to show cause the court must determine whether the dwelling is a homestead entitled to the homestead exemption, the amount of any homestead exemption, the dwelling's fair market value, the existence of any liens senior to Creditors' judgment lien, the amount of any such liens, and whether the sale of the dwelling is likely to produce a bid high enough to satisfy any part of Creditors' judgment. (<i>Meyer v. Sheh</i> (2022) 74 Cal.App.5th 830, 838-839.) If recorder or tax assessor records do not show a current homeowner or disabled veteran's exemption, debtor has the burden of proof as to whether the dwelling is a homestead; otherwise, the burden is on the creditor to show it is not a homestead. (Code Civ. Proc. § 704.780, subd. (a)(1); <i>In re Morse</i> (1995) 11 Cal.4th 184, 202.) Creditors contend no homestead declaration was ever recorded at the Orange County Tax Assessor, nor has a homeowner's exemption or disabled veteran's exemption been filed or recorded for the property. Despite the court setting September 4, 2026, as the deadline for any opposition to the order to show cause to be filed, no opposition was filed in this case. As a result, judgment
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	debtors have failed to meet their burden to show the dwelling is, in fact, a homestead. (Code Civ. Proc. § 704.780, subd. (a)(1); <i>In re Morse</i> (1995) 11 Cal.4th 184, 202.) Despite the lack of any opposition being filed in this case, Creditors filed a reply stating an opposition was served on September 4, 2026. Creditors assert the opposition argues (1) the order to show cause does not pertain to judgment Jonathan Seh, and (2) the judgment is unenforceable and void as against the Trust because a trust is not a legal entity. Without the opposition being filed, the court cannot confirm what the opposition allegedly argues. Nonetheless, the court cannot ignore the related action, case no. 2026-01573506, which also is on calendar today and is a separate proceeding in which Creditors seek an order for sale of dwelling relating to a different piece of property to enforce the same judgment. An opposition was filed in that case arguing the judgment cannot be enforced against the Trust. First, the order to show cause is directed to Jonathan Seh. Indeed, it is specifically addressed to Jonathan Seh and Lucy Seh, Trustee, or any successor trust of the Peter Seh Living Trust 2001. As noted above, title to the property is held by Lucy Seh, trustee of the Peter Seh Living Trust 2001 dated September 13, 2001 (Trust), and Jonathan Seh as joint tenants. As such, any order for sale must be directed to both owners. It must be noted, however, Creditors have not presented any authority showing or otherwise addressed how or whether the court may order a property sold to reach the interest of less than all owners. For example, as set forth below, the court concludes the judgment in its current form cannot be enforced against the Trust, which means the interest in the property held by the Trust cannot be sold pursuant to the current order. Creditors have not shown the court may nonetheless order Jonathan Seh's interest sold and if so, on what terms. For example, does the court need to value all interests and liens on the property to ensure there is enough equity to maintain the Trust's interest if the property is sold to reach Jonathan Seh's interest. Second, as the opposition allegedly points out, the judgment is unenforceable as against the Trust. A trust is not an entity capable of suing or being sued, does not itself hold title to any property, and cannot be a judgment debtor under the Enforcement of Judgment laws. (<i>Portico</i>
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		<i>Management Group, LLC v. Harrison</i> (2011) 202 Cal.App.4th 464, 474.) Rather, title to property is held by the trustee in the trustee's representative capacity of the trust. (<i>Id.</i> at p. 473; see also ROA 33.) Given a trust lacks independent existence, a judgment entered against a trust is void and is subject to collateral attack at any time. (<i>Jo Redland Trust, U.A.D. 4-06-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th 142, 157-158; <i>People v. American Contractors Indemnity Co.</i> (2004) 33 Cal.4th 653, 660.) Creditors acknowledge the judgment incorrectly identifies the defendant as the Trust itself, rather than naming the trustee of the Trust. The judgment in its current form therefore is void and unenforceable as against the Trust. Creditors' waiver arguments are not sufficient to overcome <i>Portico Management Group, LLC</i> and the governing trust law. For the foregoing reasons, the court DECLINES to issue an order for sale of the dwelling at this time. This ruling is without prejudice to a future application that complies with all timing and other statutory requirements. The ruling also expresses no opinion as to whether the judgment may be amended, corrected, or otherwise changed to reflect it is against the trustee(s) of the Trust. That is for the court that entered the judgment to determine. The court notes Creditors make a number of representations about the Trust, whether it is revocable or irrevocable, who the beneficiary is, etc., but Creditors do not present any evidence to support any other those assertions. Creditors' request for judicial notice is GRANTED. Creditors' counsel is ordered to give notice of this ruling.
11.	<i>Kirk vs She</i> <i>2026-01573506</i>	Before the court is the continued hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 24664 Las Patranas, Yorba Linda, California 92887 and owned as of record by Peter Seh, as trustee of the Peter Seh Living Trust 2001 dated September 13, 2001. As more fully set forth below, the court DECLINES to issue an order for sale at this time without prejudice to a future application that complies with all timing and other statutory requirements. The original order to show cause was entered on June 2, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). The court previously found Creditors' application satisfied the statutory requirements and